
Master of Political Science

PS CC-102: Democracy and Political Institutions in India

Credits: 4

Duration: 4hrs/week

Course Objective

Studying political institutions is indispensable for an adequate understanding of democracies. While institutions are often studied as parts of the state apparatus, this course hopes to place them within the shared common space of democracy, which is created by the exchanges and interactions among institutions. The manner in which institutions are constituted and function in relation to each other, and in the context of the wider social and political processes, are therefore, crucial for making sense of the democratic practices of the state. While the focus in this course will be on contemporary institutional forms and practices, their historical underpinnings, will also be studied through an exploration of the debates that endure from the past.

Course Learning Outcomes

- After completing this course, the students would become conscious of the historical roots of the Indian Constitution and its emergence as a foundational document of India's constitutional democracy.
- They would develop an understanding of the relationship between democracy, constitutionalism and political institutions.
- They would be able to comprehend and explain the complex relationship among political institutions and between institutions and political processes.
- They would learn to study political institutions through the conceptual lens of constitutional democracy.

Course Content:

Unit I. Historical understanding of democracy and constitutionalism in India

- a) Republics and constitutions in ancient India
- b) Salient features of India constitutionalism: representation, key debates in the Constituent Assembly of India.
- c) Constitutional freedoms and reasonable restrictions, emergency provisions, first amendment, preventive detention and debate over extraordinary laws

Unit II Governmental Institutions: Functioning and inter-relationships

- a) Judiciary: judicial independence, judicial review, judicial activism and judicial accountability
- b) Executive: Power and role of President in parliamentary democracy; Prime Minister and coalition government
- c) Legislature: issues of representation and diversity; anti-defection provision, parliamentary committees and privileges
- d) Issues of institutional supremacy and the debate on basic structure doctrine

Unit III Federalism

- a) Union-State relations
- b) Accommodation of diversity
- c) Intergovernmental mechanisms.
- d) Local Self Government: Panchayats and Municipalities

Unit IV Rule of law, rights and accountability

- a) Rule of law and the decolonization of criminal laws
- b) Constitutional and statutory bodies: Election Commission of India, National Human Rights Commission

Essential Readings:

Unit I

Austin, G. 1966. *The Indian Constitution: Cornerstone of a Nation*. Oxford University Press. (Introduction, Chapters 1,2,3 and 13)

Austin, G. 1999. Democracy Rescued or Constitution Subverted: Emergency and 42nd Amendment. In *Working a Democratic Constitution*. Oxford University Press.

Baxi, U. 1997. Accumulation and Legitimacy: The Indian Constitution and State Formation. In Singh, M.P. and Chaube, S. K. (eds.) *Indian Constitution: A Review*. Har-Anand.

Burra, A. 2018. Freedom of Speech in the Early Constitution: A Study of the Constitution (First Amendment) Bill. In Bhatia, U. (ed.) *The Indian Constituent Assembly: Deliberations on Democracy*. Routledge.

Constituent Assembly Debates (Proceedings) on Draft Article 15-A, Personal Liberty and Procedure Established by Law (Article 22), September 15 and 16, 1949, Volume IX (<http://164.100.47.194/loksabha/writereaddata/cadebatefiles/vol9.html>)

De, R. and Shani, O. 2023. Assembling the Indian Constitution. *Past and Present*, 263(1).

Iyer, V. 2000. Emergency Law in India: the Background and the Development of the Law. In *States of Emergency, the Indian Experience*. Butterworths.

Jaiswal, K. P. 2023 *Hindu Polity: A Constitutional History of India in Hindu Times*, fourth edition. Jyoti Enterpfor your attetirises.

Mukherjee, S. P. 1990. Preventive Detention (Parliamentary Debates, 13 February, 1951), in *Eminent Parliamentarians Monograph Series*, Lok Sabha Secretariat, pp. 61-81 (https://eparlib.nic.in/bitstream/123456789/58670/1/Eminent_Parliamentarians_Series_Syama_Prasad_Mookerjee.pdf)

Narrain, A. 2022. Roots of the Emergency: Preventive Detention. In *India's Undeclared Emergency*:

Constitutionalism and the Politics of Resistance. Westland Publications Pvt. Ltd.

Primary Text: Articles 352, 353, 356, 358, 359, Part XVIII, The Constitution of India

Shankar, S. 2009. *Scaling Justice: India's Supreme Court, Anti-terror Laws, and Social Rights*. Oxford University Press.

Singh, U. K. and Roy, A. 2017. B. R. Ambedkar and the Ideas of Constitutionalism and Constitutional Democracy. *Summerhill IAS Review*, XXIII(2).

Unit II

Baxi, U. 1985. Taking Suffering Seriously: Social Action Litigation in the Supreme Court of India. *Third World Legal Studies*, 4(6).

Bhuwania, A. 2017. *Courting the People: Public Interest Litigation in the Supreme Court of India*. Cambridge University Press.

Kapur, D. and Mehta, P. B. 2006. The Indian Parliament as an Institution of Accountability. *Democracy, Governance and Human Rights Programme Paper Number 23*.

Khosla, M. and Vaishnav, M. 2024. Democracy and Defections. *International Journal of Constitutional Law*, 22(2).

Krishnaswamy, S. 2009. Amending Power: The Constitutional Basis for Basic Structure Review. In *Democracy and Constitutionalism in India, A Study of the Basic Structure Doctrine*. Oxford University Press.

Madhavan, M. R. 2017. Parliament. In Kapur, D., Mehta, P. B. and Vaishnav, M.(eds.) *Rethinking Public Institutions in India*. Oxford University Press.

Manor, J. 2017. The Presidency. In Kapur, D., Mehta, P. B. and Vaishnav, M.(eds.) *Rethinking Public Institutions in India*. Oxford University Press.

Mehta, P. B. 2002. The Inner Conflict of Constitutionalism: Judicial Review and the 'Basic Structure'. In Hasan, Z., et al. (eds.), *India's Living Constitution*. Permanent Black.

Sen, R. 2022. *House of the People: Parliament and the Making of Indian Democracy*. Cambridge University Press.

Shankar, B.L., and Rodrigues, V. 2011. *The Indian Parliament: A Democracy at Work*. Oxford University Press.

Unit III

Arora, B., Kailash, K. K., Saxena, R., & Suan, H. K. (2013). Indian federalism. In K. C. Suri (Ed.), *Indian democracy* (ICSSR Survey Research). Oxford University Press.

Bhatia, G. 2025. Power Decentralized: Federalism. In *The Indian Constitution: Conversations with*

Power. HarperCollins India.

Datta, P. K. and Sodhi, I. S. 2021. The Rise of the Panchayati Raj Institutions as the Third Tier in Indian Federalism: Where the Shoe Pinches. *Indian Journal of Public Administration*, 67(1).

deSouza, P. 2011. Decentralisation and Local Government: The 'Second Wave' of Democracy in India. In Hasan, Z. et.al. (eds.) *India's Living Constitution: Ideas, Practices, Controversies*. Third impression. Permanent Black.

Khosla, M. 2024. Framing Indian Federalism. *Comparative Constitutional Studies*, 2(2).

Manor, J. 1999, *The Political Economy of Democratic Decentralization*. The World Bank.

Mathur, K. 2013, *Panchayati Raj*. Oxford India Short Introductions.

Saxena, R. 2021. The Working of Cooperative and Collaborative Federalism in India: Understanding Intergovernmental Relations. *Indian Journal of Public Administration*, 67(2).

Saxena, R. 2024. The Changing Nature of Federalism in India. In Ganguly, S. and Sridharan, E. (eds.) *The Oxford Handbook of Indian Politics*. Oxford University Press.

Singh, M. P. 2022. *Federalism in India*. Sage.

Singh, S. 2016. *The Local in Governance: Politics, Decentralization, and Environment*. Oxford University Press.

Singh, S. and Sharma P. K. (eds.). 2009. *Decentralisation: Institutions and Politics in Rural India*. Sage.

Unit IV

Ahuja, A. and Ostermann, S. 2021. The Election Commission of India: Guardian of Democracy', in, A. et.al. (eds.) *Guardians of Public Value: How Public Organisations Become and Remain Institutions*. Palgrave Macmillan.

Baxi, U. 2007. The Rule of Law in India. *SUR – International Journal of Human Rights*, 4 (6).

Burra, A. 2016. What's Colonial about Colonial Law. *American University International Law Review*, 31(2).

Shah, A. 2023. *Union Home Minister and Minister of Cooperation introduces the Bharatiya Nayay Samhita Bill in the Lok Sabha*. PIB release (11 August. 2023).

Singh, U. K. 2018. The 'Inside-Outside 'Body: National Human Rights Commission of India. *Economic and Political Weekly*, LIII(3).

Singh, Ujjwal Kumar and Anupama Roy, 2018. 'Regulating the Electoral Domain: The Election Commission of India', *Indian Journal of Public Administration*, 64(3).

Suggested Readings:

- Basu, D.D. 1992. *Introduction to the Constitution of India*. Prentice Hall.
- Baviskar, B.S. and Mathew, G. (eds.). 2009. *Inclusion And Exclusion In Local Governance: Field Studies from Rural India*. Sage.
- Baxi, U. 1980. *The Supreme Court in Indian Politics*. Eastern Book Company.
- Baxi, U. 1985. *Courage, Craft and Contention, The Indian Supreme Court in the Eighties*, N.M. Tripathi.
- Baxi, U. 2007. The Rule of Law in India. *SUR – International Journal on Human Rights*, 4 (6).
- Bhargava, R. (ed.). 2008. *Politics and Ethics of the Indian Constitution*. Oxford University Press.
- Bhatia, G. 2025. *The Indian Constitution: A Conversation with Power*. Oxford University Press.
- Chaube, S.K. 2000. *Constituent Assembly of India: Springboard of Revolution*. Manohar.
- Debroy, B. and Hazra, A. K. 2007. *Judicial Reforms in India: Issues and Aspects*. Academic Foundation.
- Dua, B.D. and M.P. Singh (eds.), 2003, *Federalism in the New Millennium*, Manohar, Delhi.
- Dua, B.D., Singh, M.P. and Saxena, R. (eds.). 2006. *Indian Judiciary and Politics: The Changing Landscape*. Manohar.
- Govinda Rao, M. and Singh, N. 2005. *The Political Economy of Federalism in India*. Oxford University Press.
- Jayal, N. G. 2006. *Representing India: Ethnic Diversity and Governance of Public Institutions*. Palgrave Macmillan.
- Kapur, D. and Mehta, P. B. (eds.). 2007. *Public Institutions in India: Performance and Design*. Oxford University Press.
- Kashyap, S. (ed.). 2004. *Constitutional Reforms: Problems, Prospects and Perspectives*. Radha Publications.
- Khosla, M. 2020. *India's Founding Moment: The Constitution of a Most Surprising Democracy*. Harvard University Press.
- Kirpal, B.N., et al. 2000. *Supreme but not Infallible: Essays in Honour of the Supreme Court of India*. Oxford University Press.
- Krishnaswamy, S. 2008. *Democracy and Constitutionalism in India: A Study of the Basic Structure Doctrine*. Oxford University Press.

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- Louis, P. and Vashum, R. 2002. *Extraordinary Laws in India*, Indian Social Institute.
- Manor, J.(ed.). 1994. *Nehru to the Nineties: The Changing Office of Prime Minister in India*, Viking.
- Mehta, U. 2016. Indian Constitutionalism: Crisis, Unity, and History. In Choudhry, S., Khosla, M. and Mehta, P. B.(eds.) *The Oxford Handbook of the Indian Constitution*. Oxford University Press.
- Morris-Jones, W.H. 1957. *Parliament in India*, University of Pennsylvania Press.
- Mukherji, N. and Arora, B. (ed.). 1992. *Federalism in India: Origins and Development*. Vikas.
- Rudolph, L. and Rudolph, S. 2008. *The Realm of Institutions: State Formation and Institutional Change, Vol II*. Oxford University Press.
- Ruet, J. and Lama-Rewel, S. T. 2009. *Governing India's Metropolises*, Routledge.
- Saez, L. 2002. *Federalism without a Centre: The Impact of Political and Economic Reforms on India's Federal System*. Sage.
- Sathe, S.P. 2002. *Judicial Activism in India: Transgressing Borders and Enforcing Limits*, Oxford University Press.
- Sen, S. 2007. *The Constitution of India, Popular Sovereignty and Democratic Transformations*. Oxford University Press.
- Shiva Rao, B. 1968. *The Framing of India's Constitution, A Study and Select Documents*. N. M. Tripathi.
- Singh, U. K. 2007. *The State, Democracy and Anti-terror Laws in India*. Sage.
- Singh, U. K. and Roy, A. 2019. *Election Commission of India: Institutionalising Democratic Uncertainties*. Oxford University Press.
- Sivaramakrishnan, K.C. 2009. *Power to the People? (2008) Courts and Panchayats: Background and Review of the Case Law, and Nagarpalikas*. Academic Foundation.
- Vora, R. and Palshikar, S. 2004. *Indian Democracy: Meanings and Practices*. Sage.
- Wadhwa, D.C. 2008 *Endangered Constitutionalism: Documents of a Supreme Court Case*. Gokhale Institute of Politics and Economics.

Facilitating the achievement of Course Learning Outcomes:

The Department deploys multiple methods to evaluate the program outcomes alongside the stipulated requirements of the university to have internal assessments and end-of-semester exams. These include:

- The communication and analytical skills of students are evaluated through regular

class presentations and group discussions.

- Term papers and field work provide a training ground for students to test their theoretical knowledge, develop a keen interest in community development programs, engage with the non-governmental sector, and learn skills to undertake future research